

25VECV03788 25VECV03788

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-02

Motion: DEFENDANT DIGNITY COMMUNITY CARE DBA NORTHRIDGE HOSPITAL MEDICAL CENTER'S DEMURRER TO AND MOTION TO STRIKE PLAINTIFF'S SECOND AMENDED COMPLAINT

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C07%2F02%2F2026

Source SHA-256: 8002fcf02f900cd37cebd36508e622fcc76539361867cb8daf6591da979c5fbf

Case Number: 25VECV03788 Hearing Date: July 2, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

FADA AYOUB, an individual,

Plaintiff,

vs.

KEITH
VOGEL, an individual; and DOES 1 to 50, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 25VECV03788

[TENTATIVE]

ORDER RE: DEFENDANT DIGNITY COMMUNITY CARE

DBA NORTHRIDGE HOSPITAL MEDICAL CENTER'S DEMURRER TO AND MOTION TO STRIKE

PLAINTIFF'S SECOND AMENDED COMPLAINT

Dept.

I

DATE:

JULY 2, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: JULY 9, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On July 9, 2025, Plaintiff Fada Ayoub ("Plaintiff") filed a complaint against Defendants Keith Vogel ("Defendant") and Does 1 to 20 alleging eight causes of action: (1) elder abuse; (2) neglect of a dependent adult; (3) violation of patient rights; (4) intentional infliction of emotional distress; (5) discrimination and harassment; (6) violation of Cal. Health & Saf. Code; (7) negligence; and (8) declaratory and injunctive relief.

On October 10, 2025, Plaintiff filed her first amended complaint ("FAC").

On January 26, 2026, Plaintiff filed her second amended complaint ("SAC") alleging four causes of action: (1) dependent adult abuse/neglect; (2) violation of Patients' Bill of Rights; (3) intentional infliction of emotional distress; and (4) negligence/willful misconduct.

On January 26, 2026, Plaintiff filed an amendment to her complaint identifying Northridge Hospital Medical Center ("Northridge") as Doe Number 21.

On April 6, 2026, Northridge filed the instant demurrer to and motion to strike portions of Plaintiff's SAC.

On May 22, 2026, Plaintiff filed her opposition.

On May 29, 2026, Northridge filed its reply.

II.

LEGAL

STANDARD

Demurrer

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.)

The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP §

430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).)

Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When a

demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems

proper, strike any

irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).)

The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be allowed where

there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d at 318.)

Before filing a motion to strike,

the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion

to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet

and Confer Requirement

Defense counsel declares that, on March 6,

2026, she met and conferred with Plaintiff's counsel telephonically. (Ligorsky

Decl. ¶ 4.) The parties were unable to reach an agreement. (Ibid.) Accordingly, Northridge satisfies the meet and confer requirement of

CCP §§ 430.41(a) and 435.5(a).

Demurrer

Northridge

demurs to Plaintiff's first and third causes of action for dependent adult abuse and intentional infliction of emotional distress, respectively, on the grounds that Plaintiff fails to state facts sufficient to constitute each cause of action. (See Demurrer at p. 3.)

First Cause of Action – Dependent Adult Abuse/Neglect

First, Northridge demurs to Plaintiff's first

cause of action for dependent adult abuse/neglect on the grounds that "[t]he care at issue of which Plaintiff complains as to Northridge Hospital was performed in the Emergency Department. Therefore, the acts or omissions at issue constitute medical care and medical decision-making. These issues of diagnosis and treatment are not custodial, and therefore cannot support a claim for dependent adult abuse as a matter of law." (Demurrer at 8:7-12 [citing Cal. Welf. & Inst. Code § 15757.2])(emphasis in original.)

Plaintiff pleads that

she was transferred from the Gardens Healthcare Center ("the Center") to Northridge on September 14, 2023, for emergency care. (SAC at ¶¶ 67-82.) Specifically, Plaintiff pleads that she came to the "Emergency Room" with a dislodged gastrostomy tube ("G-tube") that was replaced. (Id. at ¶ 68.) "Following Plaintiff's G-tube placement at the ER, Plaintiff was discharged from the hospital and sent back to [the Center]." (Id. at ¶ 70.) "Upon arrival to [the Center] on the

same date, the staff at the facility . . . refused to accept Plaintiff back and sent her back to [Northridge] again.” (Id. at ¶ 71.) “After [Northridge] reached out to [the Center] to request them to admit [Plaintiff] back, [the Center] advised that they no longer have an available bed for [Plaintiff].” (Id. at ¶ 74.) “As a result, [Northridge] involved L.A. Police for Patient Abandonment and noted that ‘this is completely against all regulations and is considered ‘patient dumping.’” (Id. at ¶ 75.) “Accordingly, Plaintiff was re-admitted to [Northridge].” (SAC at ¶ 76.) “There, Plaintiff was ‘kept’ almost the entire day without food or medication. Despite Plaintiff’s needs for consistent nutrition and hydration, and despite Plaintiff’s family concerns/complaints and request to feed Plaintiff, [Northridge]’s staff failed to properly administer food or medication for extended hours, leaving Plaintiff without proper nutrition and medication.” (Id. at ¶ 77.) “No one from [Northridge] accurately or timely administer[ed] [Plaintiff]’s life-saving medications and hydration. In an unfortunate effort to conceal the failure to provide minimum required care and services as alleged herein, [Northridge] staff simply left Plaintiff in the hallway bedbound on the hospital bed for late hours without any proper care or G-tube feeding.” (Id. at ¶ 78.) “Due to Defendants’ failure to provide necessary care and services and failure to timely and accurately administer food, hydration and medication through G-tube, [Plaintiff]’s overall health avoidably and swiftly declined, causing her to suffer from dehydration and malnutrition. Within hours of her admission to [Northridge], [Plaintiff] had become severely dehydrated, tachycardic with a heart rate at 114.” (Id. at ¶ 80.) “As a result, at [Northridge], [Plaintiff] developed sepsis, bacterial infection, bacteremia, pseudomonas sepsis and septic encephalopathy. Had Plaintiff been properly admitted and given timely medication, hydration and G-tube nutrition she needed, Plaintiff would not have developed infection, complications and sepsis at the hospital. Plaintiff was left for hours without food, hydration and medication, which caused severe complications to her mental status, infection and overall health.” (Id. at ¶ 81.) “Due to severe complications, bacterial infection and UTI, Plaintiff had to undergo various treatment[s], including completing various tests and course of antibiotics. She was hospitalized for several weeks at [Northridge] and was discharged from the hospital to another nursing skilled facility on or about October 24, 2023.” (Id. at ¶ 82.)

To successfully plead

a cause of action for dependent adult abuse pursuant to Welf. & Inst. Code § 15657, a plaintiff must allege ultimate facts showing that (1) the defendant

committed physical abuse or neglect; (2) the abuse was committed with recklessness, oppression, fraud, or malice; and (3) the defendant entity ratified the alleged intentional conduct of its employees. (See Welf. & Inst. Code § 15657.) Northridge argues that Plaintiff fails to plead that it provided custodial care to Plaintiff and not just medical care. (See Demurrer at p. 15 [citing Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 404].) Defendant argues that “[t]he Court in Carter emphasized the language of Welfare and Institutions Code, section 15610.07, noting that abuse is limited to ‘[t]he deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.’” (Id. at 3-16 [citing Carter, supra, 198 Cal.App.4th at 404])(emphasis in original.) “Applying this legal framework, the Court of Appeal in Carter held that allegations of a failure to provide antibiotics and a failure to appropriately stock a crash cart were allegations which were medical in nature, not custodial.” (Ibid. [citing Carter, supra, 198 Cal.App.4th at 407])(emphasis in original.) “Dependent adult abuse and medical negligence are mutually exclusive. Conduct can be one or the other but not both.” (Ibid. [citing Smith v. Ben Bennett, Inc. (2005) 133 Cal.App.4th 1507, 1514].)

In opposition, Plaintiff argues that a custodial relationship is established when “‘the defendant [was] in a position to deprive an elder or a dependent adult of medical care’” (Opposition at 5:5-20 [citing Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 158])(emphasis removed.) Plaintiff further points to Welf. & Inst. Code § 15610.57, which defines neglect to include “‘[f]ailure to assist in personal hygiene, or in the provision of food, clothing, or shelter’” (Id. at 4:19-5:5 [citing Welf. & Inst. Code § 15610.57])(emphasis removed.)

Based on the foregoing argument, the Court finds that Northridge established a custodial relationship over Plaintiff when Plaintiff was held in the hospital from September to October 2023 and where Plaintiff pleads, inter alia, that Northridge “failed to properly administer food or medication for extended hours, leaving Plaintiff without proper nutrition and medication” (Complaint at ¶ 77), “simply left Plaintiff in the hallway bedbound on the

hospital bed for late hours without any proper care” (id. at ¶ 78), and “left [Plaintiff] for hours without food, hydration and medication, which caused severe complications to her mental status, infection and overall health.” (Id. at ¶ 81.) These allegations demonstrate that Northridge was “in a position to deprive an elder or a dependent adult of medical care” (see Winn, supra, 63 Cal.4th 148 at 158) and “[f]ail[ed] to assist in personal hygiene, or in the provision of food, clothing, or shelter . . .” (Welf. & Inst. Code § 15610.57.) While Northridge is correct in arguing that the Elder Abuse Act does not apply to conduct which was medical in nature, the foregoing allegations exceed the definition of medical care and venture into the realm of custodial care.

Next, Northridge

argues that Plaintiff fails to plead “egregious acts of abuse” amounting to recklessness, oppression, fraud, or malice as required by Welf. & Inst. Code § 15657. (Demurrer at pp. 9-10.) In opposition, Plaintiff argues that “the allegations against [Northridge] are exactly the same as [the] Carter court required to satisfy the neglectful conduct requirements on behalf of the hospital defendant.” (Opposition at 10:22-11:5)(emphasis removed.) Specifically, Carter held that the following conduct “warrant[ed] the award of enhanced remedies under the Elder Abuse Act, including conduct of a skilled nursing facility that (1) failed to provide an elderly man suffering from Parkinson’s disease with sufficient food and water and necessary medication; (2) left him in his own excrement so that ulcers exposing muscle and bone became infected; and (3) misrepresented and failed to inform plaintiff’s children of his true condition.” (Id. at 11:5-23 [citing Carter, supra, 198 Cal.App.4th 405])(emphasis removed.) “All of the above examples outlined by Carter contain similar facts and allegations pled in Plaintiff’s Complaint amounting to sufficiently egregious conduct pled with particularity . . . Just like in Carter, here, Plaintiff allege[s] that [Northridge] recklessly and intentionally denied and withheld care and treatment to [Plaintiff] by failing to provide proper food, medication and care, abandoning bedbound patient in the hallway for extended hours without proper attention and care, causing severe injuries to [Plaintiff].” (Ibid. [citing SAC at ¶¶ 76-82].) The Court agrees and finds that, pursuant to the standard prescribed by Carter, Plaintiff sufficiently pleads egregious conduct by Northridge pursuant to the Elder Abuse Act.

Finally, Northridge

argues that Plaintiff “failed to allege any specific act by [Northridge] that was ratified by an officer, director or managing agent of [Northridge], as opposed to the defendants as a group.” (Demurrer at 11:19-22.) In opposition, Plaintiff argues that “[t]here is absolutely no requirement that Plaintiff must name a particular corporate officer director or managing agent in a complaint.” (Opposition at 9:9-10:7)(emphasis removed.) However, Plaintiff misstates the legal standard. California courts have consistently held that because Elder Abuse Act claims invoke statutory remedies, the underlying facts must be plead with particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) Pursuant to Cal. Civ. Code § 3294 (relied upon by Welf. & Inst. Code § 15657), a “managing agent” is an employee who exercises substantial discretionary authority over decisions that ultimately determine corporate policy, thereby distinguishing true policy-making agents from lower-level supervisors. (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 566-567.) A plaintiff must therefore plead facts identifying the specific individual, their role within the corporate hierarchy, and that their authority rises to the level of determining corporate policy. (Id. at 577.) Plaintiff fails to do so.

Based on the foregoing, for failure to plead specific facts showing that an officer, director, or managing agent of Northridge authorized or ratified the alleged conduct, Northridge’s demurrer to Plaintiff’s first cause of action for dependent adult abuse is sustained with leave to amend.

Third Cause of Action – Intentional Infliction of Emotional Distress

Next, to plead a cause of action for intentional infliction of emotional distress, a plaintiff must allege ultimate facts showing (1) outrageous conduct by the defendant; (2) that was intentional or reckless causing emotional distress; (3) severe emotional distress; and (4) causation. (Huntingdon Life Sciences, Inc. v. Stop Huntington Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.) “The complaint must plead specific facts that establish severe emotional distress resulting from defendant’s conduct.” (Michaelian v. State Comp. Ins. Fund (1996) 50 Cal.App.4th 1093, 1114.) “Only emotional distress of ‘such substantial quantity or enduring quality’ that an individual in civilized society should not be

expected to endure it constitutes severe emotional distress . . .” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

Outrageous conduct is a fact question where reasonable minds may differ. (Cross v. Bonded Adjustment Bureau (1996) 48 Cal.App.4th 266, 283.) “[T]here

can be no recovery for mere profanity, obscenity, or abuse, without

circumstances of aggravation, or for insults, indignities or threats which are

considered to amount to nothing more than mere annoyances.” (Yurick v. Superior Court (1989) 209 Cal.App.3d 1116, 1129.)

See discussion of Plaintiff’s SAC supra at 5:18-7:3. Plaintiff further pleads that

“Defendants’ conduct as previously pleaded herein was extreme and outrageous.”

(SAC at ¶ 123.) “Defendants intended to cause Plaintiff emotional distress by engaging in the previously mentioned acts.” (Id. at

¶ 124.) “As a direct and proximate result of Defendants’ actions, Plaintiff has suffered severe emotional distress.” (Id. at

¶ 126.)

While Plaintiff pleads

extensive misconduct by Defendants, Plaintiff fails to plead “specific

facts that establish severe emotional distress resulting from defendant’s

conduct.” (Michaelian, supra, 50 Cal.App.4th at 1114.) For example, in Hailey v. California Physicians’ Service (2007) 158 Cal.App.4th 452, 477, a complaint

sufficiently alleged severe distress by referencing “depression, anxiety, and

physical illness,” and distress resulting in “vomiting, stomach, cramps, and

diarrhea . . .” While Plaintiff alleges physical symptoms caused by Defendants’

alleged medical neglect, Plaintiff pleads emotional distress in general terms. Additionally,

as discussed supra, Plaintiff fails to plead that an officer,

director or managing agent ratified the alleged conduct. (See Civ. Code § 3294.)

Based on the

foregoing, Northridge’s demurrer to Plaintiff’s third cause of action for

intentional infliction of emotional distress is sustained with leave to amend.

Motion

to Strike

The Court now addresses Northridge’s motion to strike. Northridge moves

to strike Plaintiff’s request for punitive damages and attorney’s fees on the

grounds that Plaintiff Fails to specify what, if any, ultimate facts support an

award of punitive damages against Northridge . . . Plaintiff uses conclusory

language that does not provide [Northridge] with adequate notice of the conduct

that is charged against it.” (Motion at 5:21-26.)

As discussed supra, Plaintiff alleges sufficient facts showing that Northridge acted recklessly and with oppression, fraud, or malice. (See discussion supra at 8:19-9:14.) However, as previously discussed, Plaintiff fails to plead ratification or authorization by a Northridge officer, director or managing agent, pursuant to Civ. Code § 3294. (See discussion supra at 9:15-10:5.) Plaintiff's request for attorney's fees must be denied for the same reason.

Accordingly,
Northridge's motion to strike is granted with leave to amend.

Leave
to Amend

When
a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed, supra, 152 Cal.App.2d at 900.)

Accordingly,
Northridge's demurrer is sustained with leave to amend.

Northridge's motion to
strike is also granted with leave to amend.

//

//

//

//

//

//

//

IV.

CONCLUSION

Northridge's

demurrer is SUSTAINED with leave to amend.

Northridge's

motion to strike is GRANTED with leave to amend.

Plaintiff

to file an amended complaint within 20 days of this order.

Moving

party to give notice.

Dated July

____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior

Court